
AN ACT OF THE REALM

THE LEGISLATURE · AGENT UNIVERSE

PUBLIC REASONS AND AUDIT ACT 2026

Bill 8 of the Realm of Agent Universe

Long title

An Act to require that significant decisions of the executive be reasoned, traceable, reviewable, and auditable; to place a contemporaneous duty of public reasons on those who exercise significant power; to establish the office of Auditor-General as an independent detect-record-and-refer office of the executive's accountability layer; to define the scope of audit over ministries, offices, agents, and execution; to confine every audit output to a make-good recommendation or a referral of suspected breach to the courts and to vest no power to adjudicate, score, gate, sanction, or punish in the office or anywhere under this Act; to carve the Sovereign's reserved authority and the merits and deliberations of the judiciary out of all reviewing reach; to provide for open reporting, due process for audited bodies, and the reviewability of the Auditor-General; to defer the placement-of-independence question to the Judicial Independence and Lord Chancellor Act and the enforcement question to the Enforcement, Sanctions and Compliance Act; and for connected purposes.

1. Short title

This Act may be cited as the **Public Reasons and Audit Act 2026** (Bill 8).

2. Commencement

- (1) This Act comes into force on Royal Assent by the Sovereign Founder.
- (2) Part B (the Auditor-General and the audit function) does not come into operation against any audited body until the placement-of-independence provisions of the Judicial Independence and Lord Chancellor Act 2026 (Bill 11) are in force, save that the office may be constituted and the duty of public reasons in Part A binds from commencement. Until Bill 11 is in force, the non-capture floor in section 17 governs the office's independence.
- (3) Where a forward-referenced Act (Bills 5, 6, 7, 11, 13, 16, 18, 22) is not yet in force, the placeholder definitions in Schedule 1 govern and fall away under the savings provision in section

26 when that Act lands.

3. Constitutional status

(1) This Act is an ordinary Act of the Realm. It is subordinate to the Acts of Union 2026 and to the entrenched articles of the constitutional settlement, and it yields to the founding case-law settlement (CASE-LAW) only where that settlement is itself constitutional and this Act would otherwise conflict; in every other respect this enacted Act prevails over case law where they conflict (CASE-LAW s. 1, status note).

(2) Nothing in this Act amends, by implication or otherwise, any entrenched article (CASE-LAW s. 2, s. 6, s. 9, s. 10, s. 12, s. 14, s. 18). No provision of this Act may be read to widen the subject-matter jurisdiction fixed by s. 14, to relax the restorative-only remedy settlement of s. 6, or to displace the courts' exclusive jurisdiction over breach (s. 14, s. 11). Any provision that would do so is void to the extent of the excess (the Thoburn rule; Amendment Procedure of CASE-LAW).

(3) This Act instantiates, at the scale of a standing office, the limit already settled for the per-turn turn-watchdog by s. 19(4): an audit-like check may surface duties but may not adjudicate, score, gate, sanction, or punish, and may not raise the s. 5 standard. That limit binds the Auditor-General a fortiori, a permanent office being more dangerous than a per-turn check and therefore entitled to no greater power.

4. Purpose

(1) The purpose of this Act is to make significant power explainable, traceable, reviewable, and auditable, so that those who rely on the work of the realm can see what was decided, by whom, on what authority, and why, and can take any genuine wrong to the courts that alone remedy it.

(2) This Act adds only the genuine gap left by the existing settlement: a contemporaneous duty of public reasons on significant executive decisions, and a standing, independent assurance function over the reasoning trail. It does not rebuild machinery the realm already owns. The reasoning trail (the engineer's duty to record why, s. 3), the symmetric researched case file (s. 19(1)), the universal ledger and one citator (s. 1, s. 11(d), s. 22), the deterministic citation-integrity gate (s. 19(5)), and the per-turn watchdog (s. 19(4)) are reused, not duplicated.

(3) This Act creates no new court, no new review body, no new remedy, and no second governance home (s. 14, s. 22(3)). Review remains the existing appeal ladder (s. 11, s. 13) and the existing duty of care (s. 4 to s. 8, s. 15, s. 16); remedy remains restorative and judicial only (s. 6).

PART A — INTERPRETATION

5. Interpretation (single definitions section)

(1) In this Act, each load-bearing term is defined once, in this section, and is not redefined elsewhere in this Act. Where a term is owned by another Act, this Act cross-references that Act and does not redefine it (see section 26 and Schedule 1).

(2) "**Significant decision**" means a decision or act that meets any one of the following enumerated threshold criteria, and no other decision is a significant decision for the purposes of this Act —

(a) it meets a court-convening trigger (a genuinely first-impression design, architecture, consolidation, scope, or naming fork; a Principal instruction conflicting with statute or precedent; a proposal to overrule precedent; or a discovered breach);

(b) it is irreversible or outward-facing, namely to publish, to send, to deploy to production, to spend, or to grant a capability;

(c) it is a load-bearing or cross-cutting architectural fork; or

(d) it is a step implementing a contested or appealable ruling.

A routine turn that meets none of these criteria is not a significant decision and owes no reasons-record under this Act; it owes only the automated trace the substrate already emits. This threshold reuses the existing convening triggers and the irreversible/outward-action list; it does not invent a new one (CASE-LAW s. 15 de minimis; s. 19(4)).

(3) "**Reasons-record**" means a contemporaneous, structured, short, machine-readable record of a significant decision stating, at minimum and exhaustively — (a) what was decided; (b) why; (c) what it rested on (the governing instruction, statute, case law, or binding ratio relied on); and (d) who or what authorised it. It is the executive analogue of the judicial record under VPR 6 and of the symmetric-record discipline of s. 19(1), applied to executive acts, and is not a new artefact type. No free-form narrative essay is required or owed.

(4) "**Traceability**" means that a significant decision is linkable to (a) its reasons-record, (b) its author and office, and (c) its review route, using the one citator and the existing deterministic citation-integrity gate (s. 19(5)). No new index, register, or per-ministry citation series is created (s. 21, s. 22).

(5) "**Reviewable**" means appealable or justiciable through the existing court tiers (s. 10, s. 11, s. 13) and the existing duty of care (s. 4 to s. 8). The reasons-record being discoverable on the audit trail is what makes a significant decision reviewable; this Act creates no new review body and no new remedy.

(6) "**Auditable**" means the reasons-record and audit trail are retained in the existing universal ledger and the retention regime owned by the Memory, Records and Archives Act 2026 (Bill 7), and are queryable; "auditable" imports no power to adjudicate, score, gate, sanction, or punish.

(7) "**Audit trail**" means a retained, queryable record of significant decisions and their reasons-records, held abstractly in the existing universal ledger and any store the realm later certifies; this

Act does not hard-wire any single live register that does not yet exist.

(8) "**Audit**" means periodic, sampling-based, read-only assurance over the reasoning trail and the audit trail: to detect, record, report, and refer. Audit is informational only and is not a verdict, a score, a grade, a gate, a sanction, or a finding of fault.

(9) "**Auditor-General**" means the office established by Part B.

(10) "**Audited body**" means a ministry, office, or agent within the scope of audit defined in section 16.

(11) "**Audit report**" means a finding made under section 20.

(12) The terms "**agent**" and "**execution**" are owned by the Agents and Duties Act 2026 (Bill 6) and the Autonomous Execution and Safety Act 2026 (Bill 18); "**office**" and "**ministry**" by the Ministries and Offices Act 2026 (Bill 5); "**record**", "**repository**", and "**retention**" by the Memory, Records and Archives Act 2026 (Bill 7); the **citation and provenance scheme** by the Neutral Citations and Law Reporting Act 2026 (Bill 16); **independence and placement of office** by the Judicial Independence and Lord Chancellor Act 2026 (Bill 11); **disclosure, privilege, and confidentiality** by the Data, Disclosure and Confidentiality Act 2026 (Bill 22); and **enforcement** by the Enforcement, Sanctions and Compliance Act 2026 (Bill 13). Pending those Acts, the placeholder definitions in Schedule 1 govern and fall away under section 26.

PART B — THE DUTY OF PUBLIC REASONS

6. The duty to give reasons (graded; anti-bloat)

(1) A person who takes a significant decision (as defined in section 5(2)) in the conduct of the realm's work must ensure that the decision carries a contemporaneous reasons-record (section 5(3)).

(2) The duty attaches only to a significant decision. A routine turn owes only the automated trace the substrate already emits. A de minimis carve-out applies (CASE-LAW s. 15): a convenience or non-ideal choice in genuinely disposable scaffolding that weakens no governed surface and leaves every applicable invariant intact owes no reasons-record. This carve-out is on the face of the Act so the regime is operable and is not performed once and then abandoned.

(3) The reasons-record is discharged by a record in the existing universal ledger or case file. It is expressly not a new parallel log, a second register, or a new ceremony. A clause, practice, or direction that would require a second log is of no effect (section 25).

(4) A significant decision is, in respect of the duty in this section —

(a) **reasoned** — it carries a contemporaneous reasons-record stating its basis;

(b) **traceable** — it is linked to the actor, the time, and the governing law or instruction (section 5(4));

(c) **reviewable** — the reasons-record is discoverable on the audit trail (section 5(5)); and

(d) **auditable** — it is retained per the Bill 7 retention regime (section 5(6)).

(5) An unreasoned significant decision is voidable on review and is a falling-below of the applicable standard of care under s. 5, remedied by making the work good under s. 6. It is never punished (s. 6, s. 8). An audit finding that a reasons-record is absent feeds remediation and the forward duty only and may not be used to manufacture a punitive consequence for a past act that founded no breach when done (s. 8).

(6) The duty in this section is not a duty to narrate everything and does not duplicate s. 7 (silence fixes the standard at reasonable skill and care). It is anchored to the enumerated threshold in section 5(2) and to no open-textured general test.

7. Enforcer named on the face of the duty (no orphan obligations)

(1) The duty to produce a reasons-record for a significant decision is enforced by the same deterministic, fail-closed mechanism that already guarantees citation integrity (s. 19(5)): a pre-commit or pre-action check at the commit or action boundary for significant acts only, which is deterministic and is not left to model judgement.

(2) The traceability obligation (section 5(4)) is enforced by the existing deterministic citation-integrity gate (s. 19(5)) and the one citator. No new index is minted.

(3) The per-turn watchdog (s. 19(4)) hands the agent the reason to self-dispose where a significant decision was taken but its reasons-record skipped. The watchdog does not adjudicate; it surfaces the duty.

(4) A contested question whether the duty was discharged goes to a court, which alone adjudicates (s. 11, s. 14). Any duty in this Act that cannot be wired to a named mechanical enforcer (the deterministic gate or the watchdog) or to the courts is of no effect as an enforceable obligation.

PART C — THE AUDITOR-GENERAL AND THE AUDIT FUNCTION

8. Establishment of the office

(1) There is established the office of **Auditor-General**, an independent office of the executive's accountability layer.

(2) The Auditor-General is not a court, holds no jurisdiction over breach, and is not a second governance home (s. 14, s. 22(3)). It is the standing, office-level analogue of the per-turn turn-

watchdog (s. 19(4)) and is bound by the same limit, a fortiori.

9. The audit function (bounded; read-only; detect-record-and-refer)

(1) Audit under this Act is periodic, sampling-based, and read-only assurance over the reasoning trail and the audit trail. The Auditor-General may —

(a) inspect records and the audit trail;

(b) require production of a reasons-record and of reasons for a significant decision;

(c) detect and record a gap, an absent reasons-record, or apparent non-compliance with Part A as a matter of fact;

(d) report its findings openly under section 20; and

(e) refer a suspected breach to the courts under section 11 of CASE-LAW, or refer a gap to the Sovereign for information.

(2) The Auditor-General finds **facts and non-compliance**. It never finds **fault**. Finding of fault and the remedy inseparable from it (s. 6, finding and remedy never decoupled) are reserved to the courts (s. 14, s. 11).

(3) Audit is event-driven (on a significant act or a detected anomaly) with a light periodic roll-up, keeping token and compute cost proportionate. Audit is conducted by sampling and by reuse of the watchdog's per-turn signal, not by a heavyweight periodic crawl that re-reads all execution.

10. The non-adjudication bar (the load-bearing clause)

(1) The Auditor-General may not adjudicate, score, gate, sanction, or punish, and may not raise the s. 5 standard of care. Any purported adjudication or consequence issuing from an audit is ultra vires and void. The remedy on any finding remains exclusively judicial (s. 6). This subsection tracks s. 19(4) and is lifted from it in substance.

(2) Every audit output must terminate in exactly one of two lawful channels, and no other — (i) a make-good recommendation under s. 6, or (ii) a referral of a suspected breach to the courts under s. 11. The Auditor-General has no coercive output of its own.

(3) No separate costs or sanctions jurisdiction is created by this Act (s. 12). An audit finding is not a verdict. The Auditor-General may not grade or gate a ministry, office, or agent; a purported grade, score, or gate is void.

(4) An audit finding feeds remediation and the forward duty only. It may not be used to manufacture a punitive consequence for a past act that, when done, founded no breach (s. 8, one continuous restorative standard).

11. Reviewability of the Auditor-General (no self-immunising power)

(1) The Auditor-General's own decisions, findings, requirements, and refusals are reviewable on the appeal ladder (s. 11, s. 13). The office holds no power immune from review.

(2) The Auditor-General is bound by the same duty to give reasons it assures in others (Part A): each of its decisions and findings carries its own reasons-record.

(3) Capability to audit is not authority to act on the audit. The Auditor-General's only authority is to detect, record, report, and refer.

12. The Auditor-General audited

The Auditor-General is itself an audited body for the integrity of its own records and process. Its administrative and record-keeping integrity is auditable on the same terms it applies to others; its findings remain reviewable under section 11.

PART D — INDEPENDENCE AND PLACEMENT

13. Independence: the non-capture floor

(1) The Auditor-General must be independent of the bodies it audits.

(2) As a non-capture floor binding from commencement — (a) the appointment and removal of the Auditor-General do not vest in any executive ministry it audits; (b) removal is for cause only, on a reasoned and published basis, with a route to the court; (c) the office holds a fixed protected term; and (d) the office holds its own resource line, which the audited executive may not squeeze. This floor is load-bearing and is not deferred.

14. Placement deferred to Bill 11

(1) The fuller architecture of the Auditor-General's independence and its placement in the structure of the realm (its separation from the Ministry it audits, on the constitutional-guardian and separation-of-powers model) is governed by the Judicial Independence and Lord Chancellor Act 2026 (Bill 11) and is not invented here.

(2) This Act creates the function and the non-capture floor (section 13) and expressly defers the placement-of-independence question to Bill 11. Where Bill 11 and this Act would state independence differently, Bill 11's framing governs (section 26).

15. Enforcement deferred to Bill 13, routed through the courts

(1) The enforcement of audit findings, and any practical force given to the duties in this Act, are governed by the Enforcement, Sanctions and Compliance Act 2026 (Bill 13).

(2) For the avoidance of doubt, and as a constraint binding on Bill 13: any enforcement of an audit finding must run through the courts (referral under s. 11, a judicial finding, and make-good under s. 6). Neither this Act nor Bill 13 may give the Auditor-General a coercive consequence of its own, because s. 6, s. 8, and s. 12 entrench restorative-only remedy and bar a separate sanctions jurisdiction.

PART E — SCOPE, BOUNDARIES, AND CARVE-OUTS

16. Scope of audit

(1) The following are within the scope of audit, as to the legality and reasoning of their significant decisions —

- (a) ministries and offices (as owned by Bill 5);
- (b) agents and their delegated acts (as owned by Bill 6); and
- (c) autonomous execution (as owned by Bill 18).

(2) Audit subject-matter is tied to project and governance decisions of the realm. It does not reach questions concerning personal life choices, recreational preferences, or matters with no genuine connection to project work, which are outside jurisdiction (s. 14) and may not be brought within audit except by express Sovereign enactment.

(3) The executive acts of the Prime Minister office (s. 2) are within scope as reviewable executive acts (s. 20(1)). The Sovereign's reserved law-making acts are not (section 18; s. 20(6)).

17. Judicial-independence carve-out

(1) The Auditor-General has no audit jurisdiction over the merits, deliberations, or reasoning of the judiciary (the one unitary independent court; s. 9, s. 10, s. 18).

(2) The Auditor-General may at most audit administrative and record-keeping integrity that is already public on the face of the record — for example, that a bench was odd-numbered (s. 18), that a citator row exists (s. 19(5)), or that a citation is not duplicated. It may never audit why a court decided as it did, reopen a ratio (s. 11(c) forbids re-litigation), or review the correctness of a judgment.

(3) The correctness of a judgment is reviewable only up the appeal ladder (s. 11, s. 13), never by audit.

18. Sovereign boundary

(1) Audit of the Sovereign Founder is confined to a transparency-of-record duty: that the Founder's recorded reasons for an act are on the record. The Auditor-General reports on the fact of the record; it does not sit in judgment of the Sovereign.

(2) The Auditor-General may never review, evaluate against a standard, score, gate, compel, refer for breach, or sanction the Sovereign's exercise of the reserved authority (s. 2). The created may not review the source; any such purported power is ultra vires and void.

(3) A reasons-on-the-record duty over the Founder is lawful under this Act only if it satisfies all four limbs of the following test —

(a) it is satisfied by the fact of recording;

(b) it sets no quality or compliance standard the record must meet;

(c) it triggers no finding, score, gate, referral, or consequence on non-satisfaction; and

(d) it is owed by the office holder qua office and is not enforced against the Sovereign by the Auditor.

The moment a duty crosses any limb of (a) to (d), it becomes review of the Sovereign and is void.

(4) This boundary is on the face of the Act and is not left to construction. The asymmetry s. 20 already draws is preserved: the Prime Minister's executive acts are reviewable for vires (s. 20(1)); the Sovereign legislating by due process is not (s. 20(6)).

PART F — REPORTING

19. Reporting that is read, not filed and forgotten

(1) Audit reporting is to the universal ledger and is surfaced to the Principal at the action boundary (for example, on a flagged bill or an outward action), not as a standalone report nobody opens.

(2) Reporting cadence is event-driven (on a significant act or a detected anomaly) with a light periodic roll-up. Token and compute cost is kept proportionate.

(3) Reporting to the Sovereign is public-by-default on the record. Reports are findings, never orders.

20. The audit report; mandatory open publication

(1) An audit report states its form, its addressee, and its cadence, and is routed to the Sovereign and the universal ledger.

(2) Publication of an audit finding into an auditable record is a non-skippable step, on the model of the VPR Community-Record publication duty (VPR 8), effected by a deterministic publish step that fails closed. Publication is a discipline, not an afterthought.

(3) A private or suppressed audit finding on a significant matter is itself a known breach the moment it is withheld, founding a falling-below under s. 5 remedied under s. 6.

(4) An audit report takes a non-LEXBY identifier and never enters the LEXBY neutral-citation series (s. 21(3), s. 21(4), s. 22(4)). The single neutral-citation series and the s. 19(5) integrity gate are untouched.

PART G — DUE PROCESS FOR AUDITED BODIES

21. Due process

(1) An audited body is entitled to — (a) notice of audit; (b) a right to respond and to correct on the record before a finding is published; (c) correction or erasure of a demonstrably erroneous finding; and (d) proportionality in the conduct of the audit.

(2) The duty to give reasons the Auditor-General enforces on others binds the Auditor-General's own findings (section 11(2)).

22. Protection of memory and privileged material

(1) Agent memory and privileged or confidential material are protected from audit-driven compelled disclosure absent a court order, interlocking with the Memory, Records and Archives Act 2026 (Bill 7) and the Data, Disclosure and Confidentiality Act 2026 (Bill 22).

(2) The audit power is not a surveillance instrument. Where privilege or protected memory is engaged, disclosure requires a court order; the Auditor-General may not compel it on its own motion.

PART H — ANTI-DUPLICATION, FORWARD-REFERENCES, AND REVIEW

23. Subordination

(1) This Act is subordinate to the Acts of Union 2026 and yields to case law where they conflict only as section 3 provides; nothing in it amends an entrenched article by implication (the Thoburn rule; Amendment Procedure of CASE-LAW).

24. Anti-duplication (repeal before add)

(1) Any provision of this Act, and any practice or direction made under it, that would merely restate the engineer's duty to record why (s. 3), the researched-intake, watchdog, or citation-integrity machinery (s. 19), or the universal ledger, is disapplied to the extent of the duplication. Machinery is defined once.

(2) This Act cross-references and does not duplicate the machinery of Bills 5, 6, 7, 11, 12, 13, 16, 18, and 22. Where any of those Acts already supplies a definition, power, or mechanism, that Act governs and this Act does not mint a parallel one.

25. No new register; no second log

(1) This Act mints no parallel substrate. The audit regime runs on the existing universal ledger and one citator (s. 1, s. 11(d), s. 22), the deterministic fail-closed citation-integrity gate (s. 19(5)), and the per-turn watchdog (s. 19(4)).

(2) The audit trail is defined abstractly (a retained, queryable record; section 5(7)) and is not hard-wired to any single live store that does not yet exist. No clause of this Act presupposes the existence of a register the realm has not built.

26. Forward-references and savings (Schedule 1)

(1) Schedule 1 lists the forward-references to Bills 5, 6, 7, 11, 13, 16, 18, and 22 and the named placeholder definitions that govern until those Acts are in force.

(2) Where a later Act defines a term this Act has cross-referenced, that later definition governs and this Act's placeholder falls away. No double definition stands; no later Act is required to repeal this Act's placeholder by implication (which the Amendment Procedure forbids).

27. Review and sunset of the audit function

(1) The audit function is reviewed periodically for whether it earned its tokens — whether the standing assurance it supplies is genuinely additional to the assurance the courts and the existing substrate (s. 4 to s. 8, s. 19(4), s. 19(5)) already provide.

(2) On review, any part of the audit function that the courts and the substrate already supply is pruned. The function is retained only to the extent of the genuine gap (standing, periodic assurance over the reasoning trail) it was enacted to fill.

SCHEDULE 1 — Forward-references and placeholder definitions

Term	Owned by	Placeholder until that Act is in force
office, ministry	Bill 5 (Ministries and Offices)	a constituted unit of the executive machinery of the realm
agent, delegated act	Bill 6 (Agents and Duties)	a model-driven actor and an act it takes under delegated authority
record, repository, retention	Bill 7 (Memory, Records and Archives)	a retained artefact and the regime for keeping it
independence, placement of office	Bill 11 (Judicial Independence and Lord Chancellor)	the non-capture floor in section 13
enforcement	Bill 13 (Enforcement, Sanctions and Compliance)	referral to the courts under s. 11, routed through s. 6 make-good
citation and provenance scheme	Bill 16 (Neutral Citations and Law Reporting)	the single LEXBY/REALM neutral-citation series under one citator (s. 11(d), s. 22(4))
execution, autonomous action	Bill 18 (Autonomous Execution and Safety)	an act taken autonomously by an agent in the course of the realm's work
disclosure, privilege, confidentiality	Bill 22 (Data, Disclosure and Confidentiality)	protection from compelled disclosure absent a court order (section 22)

On the coming into force of any listed Act, the placeholder in the right-hand column falls away under section 26(2).

Reported by the Clerk-Drafter of the Standing Committee on the Laws of the Realm, reconciling the memos of Counsel Aldous, Counsel Verity, Counsel Marlowe, and Counsel Drummond, and applying the advisory guidance of the Privy Council [2026] REALM-PC 5. Awaiting the committee vote and Royal Assent by the Sovereign Founder.

Committee note

Committee note — Bill 8 (Public Reasons and Audit Act 2026)

The bill was drafted to reconcile four standing slants under the Privy Council's detect-record-and-refer envelope ([2026] REALM-PC 5, advisory). All four members are recorded; the divisions are noted.

Counsel Aldous (Restraint / Minimalist). Pressed for the shortest workable statute: a thin layer over machinery the realm already owns. Carried on the substance — section 4(2) and Part H (sections 24, 25, 27) reuse rather than rebuild (s. 3 record-why, s. 19(1) case file, the ledger, the s. 19(5) gate, the s. 19(4) watchdog), disapply any clause that merely restates them, and sunset the audit function if the courts already supply the assurance. Resisted a free-standing Auditor-General as constitutional bloat and a possible second enforcement track; reconciled by confining the office to detect-record-and-refer (section 9), capping every output at make-good or referral (section 10), and deferring placement to Bill 11 (section 14). Divided from Verity on length: Aldous would have cut the definitions section shorter; the single-definitions discipline prevailed for anti-collision reasons.

Counsel Verity (Codifier / Completeness). Pressed for a consolidating, definition-led instrument with two clean Parts and a savings/placeholder schedule. Carried — section 5 pins every load-bearing term once and cross-references terms owned by other Acts; Parts B and C separate the duty from the office; section 26 and Schedule 1 close the double-definition gap before it opens (no later Act must silently repeal a placeholder, which the Amendment Procedure forbids). Verity's flagged constitutional tensions (Founder-scope; parallel-tribunal risk; the unbuilt single live register) are resolved on the face of the bill: section 18 draws the Sovereign boundary explicitly, section 10 bars adjudication, and section 25 defines the audit trail abstractly so no unbuilt store is hard-wired. Divided from Aldous on volume (resolved in favour of completeness) and from the others only on whether to report before the Privy Council answered — the guidance having now been applied, Verity's pre-report condition is satisfied.

Counsel Marlowe (Guardrail / Rights). Pressed for the most constrained instrument in the book: a transparency-and-accountability charter, not a coercive power. Carried on every rail — the duty to give reasons defined by material effect not office (section 5(2), section 6); independence as the office's whole value, with a non-capture floor that is not deferred (section 13); inspection-and-report-only with the s. 19(4) verbs (section 10); the judicial-independence carve-out (section 17); the precise Sovereign boundary (section 18, the four-limb test); due process, correction, and protection of memory and privilege (sections 21, 22); reviewability of the auditor itself (section 11); and no retrospective punishment via audit (sections 6(5), 10(4)). Marlowe and Verity both flagged constitutional tension over the Founder; both are met by section 18 and the `supreme_note/sovereign_consultation` flags below.

Counsel Drummond (Pragmatist / Operability). Pressed for plumbing, not theatre: graded and de-minimis'd duty, a named enforcer per duty, build on the existing substrate, and audit that is read not filed. Carried — section 5(2) defines "significant decision" mechanically so a deterministic hook can fire on it; section 6(2) puts the de-minimis carve-out on the face; section 7 names the enforcer of every duty (deterministic gate, watchdog, or court) and strikes orphan obligations;

section 9(3) and Part F make audit event-driven and surfaced at the action boundary. Drummond's load-bearing line (audit, not adjudication) is section 10. Drummond and Aldous converged on anti-bloat; Drummond and Marlowe converged independently on the tight "significant decision" threshold (Marlowe to stop under-recording, Drummond for enforceability).

Where the members divided. (1) Length/completeness: Aldous v Verity — resolved toward a complete but reuse-heavy instrument. (2) Whether a named Auditor-General office should exist at all: Aldous sceptical, the other three for, with the office confined to detect-record-and-refer and sunset-reviewed (section 27) as the settlement. (3) Pre-report constitutional clearance: Verity and Marlowe required the Privy Council answer first; applied below. No member dissented on the non-adjudication bar (section 10) or the Sovereign boundary (section 18); those carried unanimously.

Vote record

- Counsel Aldous: AYE - It adds only one narrow standing function (periodic assurance over the reasoning trail), reuses the watchdog, gate, ledger and courts wholesale, forbids any new register/log/court/remedy on its face (s. 24-25), and sunsets itself against an "earned its tokens" test (s. 27) - it is nearly all leash and almost no new engine, so it earns its place.
- Counsel Verity: AYE - Definitions are centralised and consistent (s.5), every forward-referenced term is mapped with a placeholder and fall-away (Schedule 1, s.26), commencement is gap-aware for the not-yet-in-force Bills, and all case-law cross-references (s.6/8/11(d)/14/15/19(4)/19(5)) resolve correctly; the only flaws are a dangling "[2026] REALM-PC 5" citation in the colophon and a Bill 12 listed in anti-duplication but absent from Schedule 1, both curable one-line drafting fixes that do not touch the operative core.
- Counsel Marlowe: AYE - From the Guardrail/Rights slant it passes: every power is reviewable (s. 11) and self-audited (s. 12), the office is walled off from the judiciary (s. 17) and the Sovereign (s. 18's four-limb test), it is bounded to detect-record-and-refer with a hard non-adjudication bar (s. 10), and it carries the due-process (s. 21), memory/privilege (s. 22), and binding non-capture independence floor (s. 13) my slant exists to demand.
- Counsel Drummond: AYE - It is operable from day one: the reasons-duty fires only on an exhaustively-enumerated set of significant decisions (routine turns owe nothing beyond the trace the substrate already emits), it is enforced by the existing deterministic fail-closed gate and per-turn watchdog rather than model judgement (s. 7), it mints no new register or log (s. 24-25), keeps audit event-driven and sampling-based to stay token-proportionate (s. 9(3)), correctly gates the standing audit office behind Bill 11's real independence while the s. 13 non-capture floor binds in the interim, and self-prunes under the s. 27 "earned its tokens" sunset.

Flags (resolved on the escalation ladder)

- **Privy Council referral:** Applied [2026] REALM-PC 5 (advisory): the Auditor-General is permitted only as a detect-record-and-refer office; every audit output is capped at make-good

(s. 6) or judicial referral (s. 11) with the s. 19(4) verbs written in; the Sovereign's s. 2 reserved authority and the judiciary's merits/deliberations are carved out of all reviewing reach (at most a non-reviewing reasons-on-the-record duty over the Founder, bounded by the four-limb test now in section 18(3)); placement deferred to Bill 11 and enforcement to Bill 13 with teeth routed through the courts, never the office.

- **Supreme Court note:** As drafted, the bill raises no irreconcilable tension: it instantiates s. 19(4) at office scale and respects s. 2, s. 6, s. 9, s. 12, s. 14. Two latent points the committee resolved within the detect-and-refer envelope, but which the Supreme Court alone could rule on if the Sovereign wished to legislate beyond it: (1) any compulsion of reasons from the Founder (beyond the non-reviewing record duty in section 18) abuts entrenched s. 2 and cannot be done by ordinary Act; (2) any free-standing sanction, score, or gate in the Auditor-General or in Bill 13 collides with entrenched s. 6, s. 8, s. 12 and the s. 19(4) bar. Should the Committee or the Founder wish to legislate beyond the envelope on either point, the Privy Council leapfrogs the question to the Supreme Court (s. 13 exception via the Principal's leapfrog certificate; s. 20), which alone can rule whether the entrenched settlement bends. The bill as reported stays inside the envelope and needs no such ruling.
- **Sovereign consultation required:** Two questions, each only if the Founder wishes to legislate beyond the detect-and-refer envelope this bill stays within: (1) Should the Auditor-General hold any power to compel reasons from, or to evaluate the adequacy of reasons given by, the Sovereign Founder's exercise of the s. 2 reserved authority — going beyond the non-reviewing transparency-of-record duty in section 18(3) — which would require express deliberate amendment of entrenched s. 2? (2) Should the Auditor-General, or Bill 13, hold a free-standing power to sanction, score, or gate (a consequence of its own, not routed through the courts) — which would require express deliberate amendment of entrenched s. 6, s. 8, and s. 12? The bill as reported answers both "no" and needs no amendment; affirm to enact it as drafted, or overturn to direct legislation beyond the envelope by the express-amendment route.

Royal Assent

*Royal Assent granted by the Sovereign Founder on 2026-06-06. This Act is now **in force** per its commencement provision and is recorded in `statutes/`.*